

Ajaj Ahmad v. State of U.P. — writ against Para-6.8 order dismissed for s.127 appeal

High Court of Judicature at Allahabad · Division Bench · 2 August 2022 · WRIT - C No. 21724 of 2022 · **Writ dismissed; relegated to Section 127 appeal; limitation saved for three weeks.**

HEADNOTE

A writ challenging an order dated 22.06.2022 passed under Para 6.8 of the U.P. Electricity Supply Code, 2005 is not maintainable where an appeal under Section 127 of the Electricity Act, 2003 is available. The Allahabad High Court dismissed the petition on that alternative remedy without examining merits, with liberty to appeal within three weeks; if so filed with a certified copy of the order, the appellate authority shall not raise limitation.

FACTUAL SUMMARY

Ajaj Ahmad filed Writ-C No. 21724 of 2022 in the Allahabad High Court challenging an order dated 22 June 2022 passed by respondent No. 4 under Para 6.8 of the U.P. Electricity Supply Code, 2005. Counsel for respondent Nos. 3 and 4, the distribution licensee, objected that the writ was not maintainable because an appeal under Section 127 of the Electricity Act, 2003 lay against that order. Standing counsel for the State and counsel for the licensee were heard.

HOLDING-UNITS

INTERPLAY · EA2003::127

s.127 appeal bars writ against Para-6.8 order

HOLDING

A writ petition challenging an order passed under Para 6.8 of the U.P. Electricity Supply Code, 2005 is dismissed on the alternative remedy of appeal under Section 127 of the Electricity Act, 2003, without any opinion on merits. Liberty is granted to file the appeal; if filed within three weeks with a certified copy of this order, the appellate authority shall entertain it without raising limitation. ¶ 1

PRINCIPLE TAGS

alternate-remedy-section-127-appeal-bars-writ The Division Bench dismissed the writ against the 22.06.2022 Para-6.8 order because a Section 127 appeal was available. ¶ 1

alternative-remedy-statutory-appeal-6.8 The impugned Para-6.8 order was treated as appealable under Section 127, and the petitioner was relegated to that statutory appeal with a three-week limitation saving. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED PARA-6.8 ORDER DATED 22.06.2022

Court expressly declined to express any opinion on merits. ¶ 1